

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE

Abraham K. Wales and Hawa S. Wales, Ansu M. Kenneh,)
Ansumana Kanneh and Abu B. Talawally of the City of Monrovia)
Liberia.....Appellants)

VERSUS)

Intestate Estate of Arthur and Reuben Hart, represented by its)
Administrators and Administratrix, Harrison A. Hart, Gertrude W.)
Neglett, Moses Hart and Samuel Owens, also of the City)
Monrovia, Liberia.....Appellee)

APPEAL

GROWING OUT OF THE CASE :)

Abraham K. Wales and Hawa S. Wales, Ansu M. Kenneh,)
Ansumana Kanneh and Abu B. Talawally of the City of Monrovia)
Liberia.....Movants)

Versus)

MOTION FOR RELIEF
FROM JUDGMENT

Intestate Estate of Arthur and Reuben Hart, represented by its)
Administrators and Administratrix, Harrison A. Hart, Gertrude W.)
Neglett, Moses Hart and Samuel Owens, also of the City)
Monrovia, Liberia.....Respondent)

GROWING OUT OF THE CASE:)

Abraham K. Wales and Hawa S. Wales, Ansu M. Kenneh,)
Ansumana Kanneh and Abu B. Talawally of the City of Monrovia)
Liberia.....Movants)

Versus)

MOTION TO
INTERVENE

Intestate Estate of Arthur and Reuben Hart, represented by its)
Administrators and Administratrix, Harrison A. Hart, Gertrude W.)
Neglett, Moses Hart and Samuel Owens, also of the City)
Monrovia, Liberia.....Respondent)

GROWING OUT OF THE CASE:)

Abraham K. Wales and Hawa S. Wales, Ansu M. Kenneh, and)
Ansumana Kanneh of the City of Monrovia, Montserrado Co.)
Liberia.....Informants)

Versus)

BILL OF

	)	INFORMATION
Intestate Estate of Arthur and Reuben Hart, represented by its	)	
Administrators and Administratrix, Harrison A. Hart, Gertrude W.	)	
Neglett, Moses Hart and Samuel Owens, also of the City	)	
Monrovia, Liberia.....Respondent	)	

Heard: April 15, 2025

Decided: May 29, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

This appeal emanates from the final ruling of the Civil Law Court, Sixth Judicial Circuit for Montserrado County, sitting in its September Term, A. D. 2023, presided over by His Honor J. Kennedy Peabody. The court, on November 23, 2023, having entertained argument *pro et con* into the appellants' motion for relief from judgment, ruled, denying and dismissing same on grounds that the motion did not advance any legal justification upon which the court could relieve them from its final ruling delivered on October 17, 2023, consistent with the requisite provision of the law regarding a motion for relief from judgment, Section 41.7 of the Civil Procedure Law, Rev. Code 1:41.

The facts culled from the records reveal that on June 8, 2016, the appellee, the Intestate Estate of Arthur and Reuben Hart, through its administrator and administratrix, Harrison A. Hart, Moses Hart, Samuel Owens, and Gertrude W. Neglett, filed before the Civil Law Court, Sixth Judicial Circuit for Montserrado County, an action of ejectment against several defendants named in the writ of summons, but excluding the present appellants, Abraham K. Wales and Hawa Wales, Ansu M. Kenneh, Asumana Kanneh, and Abu B. Talawally. The appellee alleged that during the natural life of the decedents, Arthur and Reuben Hart, they acquired forty (40) acres of land, lying and situated in Johnsonville from Anna Jenkins Moore in November 1970; that without any color of right, the defendants jointly and severally encroached upon its property; that despite several warnings, verbal and written, the defendants neglected to vacate the subject property, and consequent thereof, it instituted this action of ejectment.

This Court notes that between 2016 when the appellee filed its action of ejectment to August 2022, the present appellants were not named as party defendants in the ejectment action, and the proper party defendants thereto not having come before this Court, it will not belabor this Opinion by delving into all of the trial proceedings involving the appellee and the party defendants in the ejectment action.

The records show on November 21, 2022, the appellants filed a bill of information before the trial court alleging therein that they were never named as parties to the ejectment action, were also not served with the summons and complaint, hence, were not brought under the jurisdiction of the court; that although the property they currently occupy was honorably purchased and title deeds issued to them therefor, they are about to be adversely affected by the decision of the trial court growing out of the ejectment proceedings in which they are not party.

On July 17, 2023, the trial court having entertained argument on the bill of information, ruled, denying and dismissing the bill of information. The counsel for the informants noted exceptions and gave notice the he would take advantage of the statute controlling. However, there is no showing in the records that the appellants sought relief or review of this ruling through a remedial process.

On August 21, 2023, the appellants filed a motion to intervene and an intervenor's answer. However, the records transcribed to this Court are void of any information as to the determination on the motion to intervene. Hence, we will not belabor this Opinion with the said motion to intervene.

On October 23, 2023, the appellants filed a motion for relief from judgment, the ruling from which forms the basis of the present appeal. The appellants principally contend that they were never made parties to the ejectment action; that upon a bill of information filed and granted, the trial court ordered that they be served with the complaint and summons but were never served; that the subsequent bill of information filed on November 21, 2022, was denied on ground that same does not grant relief from decision of the court, and that consequent thereof, they filed a motion to intervene which is pending undetermined before the trial court; that they are bona fide owners of the subject property by honorable purchase but are to be adversely affected by the final ruling of the trial court.

When the motion was called for hearing on November 16, 2023, the appellee, again, by leave of the trial court, resisted the motion on the records and prayed the trial court to deny and dismiss same for lack of legal basis. On November 23, 2023, the trial court, upon hearing on the motion, ruled denying the motion and held that the movants' grantor, Momo Gray, being a party defendant in the ejectment action, by operation of law, the movants being in privity with their grantor. The counsel for the movants noted exceptions and announced an appeal to the Supreme Court, sitting in its March Term, A.D. 2024, and thereafter, filed their bill of exceptions.

Our review of the appellants' bill of exceptions show a restatement of the averments contained in their motion for relief from judgment, hence, the singular issue determinative of this appeal is: Given the facts and circumstances in this case, are the appellants entitled to relief under a motion for relief from judgment, as a matter of law?

The appellants having impressed upon this Court that the trial judge erred when he denied and dismissed their motion for relief from judgment, the crux being that they were not made parties to the ejectment action filed by the appellee, we revert to the statute controlling to aid our determination.

It is the law, that "on motion and upon such terms as are just, the court may relieve a party or his legal representative from a final judgment for the following reasons:

- a) Mistake, inadvertence, surprise, or excusable neglect;
- b) Newly discovered evidence which, if introduced at the trial, would probably have produced a different result and which by due diligence could not have been discovered in time to move for a new trial under the provisions of section 26.4 of this title;
- c) Fraud, (whether intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party;
- d) Voidness of the judgment; or
- e) Satisfaction, release, or discharge of the judgment or reversal or vacating of a prior judgment or order on which it is based, or inequitableness in allowing prospective application to the judgment". Civil Procedure Law, Section 41.7(2)

From the clear wording of the quoted Statute, it is the law that one must first be a party to a suit or be represented by a legal representative in that suit, in order to have standing to file a motion for relief from judgment. In the instant case, the appellants not being parties to the action of ejectment filed by the appellee, nor represented by a legal representative therein, the motion for relief from judgment is inapplicable to them.

Taking judicial cognizance of the statute restated herein above being the basis for the granting of a motion for relief from judgment to a party, and our review of the alleged errors committed by the trial court as contained in the appellants' bill of exceptions, same not being in harmony with any of the grounds stated in the statute, we find ourselves unable to agree that they are entitled to such relief under these circumstances.

This Court holding does not negate the fact that the appellants are title holders to their respective parcels of land allegedly acquired through honorable purchase that are said to be affected by the judgment of the trial court, we however say that these appellants not being brought under the jurisdiction of the trial court cannot be concluded by its judgment. It is the law that “the right of no one shall be concluded by a judgment rendered in a suit to which he is not a party, and a party cannot be bound by a judgment without being allowed his day in court”. *LIDC v. Thorpe*, 31 LLR 714, 718 (1984); *Keturah Tengbeh et al v. The Intestate of Samuel B. Cole*, Supreme Court Opinion, October Term, A.D. 2024; *Broh v. House of Representatives et al*, Supreme Court Opinion, October Term, A.D. 2013.

However, as noted earlier herein, the appellants are grantees of one of the co-defendants, Momo Gray, in the ejectment action filed with the trial court, thus in privity with their grantor. Hence, by law, “contractually, the grantor is bound by perpetual obligation to defend the grantee’s ownership of a property transferred by deed...that acquisition of a property transferred by a deed is a legal contract between the grantor and the grantee or subsequent grantees, and as such, a grantor is bound by perpetual obligation to defend such grantees’ ownership of property so transferred by deed”. *Abu Donzo v. Doris Tate*, 39 LLR 72, 82 – 83, (1998).

More importantly, in the case: *Mahmoud v. Jalloh et al*, 37 LLR 3, 10 -11, (1992), the Supreme Court defines privity as mutual or successive relationship to the rights of property. In its broadest sense, the Court says privity is defined as a mutual or successive relationship to the same right of property, or such an identification of interest of one person with another as to represent the same legal right; derivative interest founded on or growing out of contract, connection, or bond of union between parties, mutuality of interest. Thus, the executor is in privity with the testator, the heir with the ancestor, the assignee with the assignor, the donee with the donor, the lessee with the lessor, and the grantee with the grantor”.

However, in the present case, the appellants’ grantor having parted with title, is only in the position to warrant and defend the appellants titles. Hence, although this Court holds that a motion for relief from judgment is inapplicable to the appellants, this Court having noted that the appellants were never brought under the jurisdiction of the trial court, and cannot be bound by any ruling emanating from the court, holds further, that the appellee are still required by law to pursue the appropriate action against the appellants to recover the disputed properties allegedly occupied by the appellants.

Before we conclude this Opinion, this Court notes from the records that the trial court and the parties interchangeable use of the “words” arbitration and investigative survey. Hence, this Court must of necessity again educate those judges and lawyers who persist in this legal blunder as to the distinction between an investigative survey and arbitration, for the enhancement of our jurisprudence as espoused in recent cases: *MDMC v. Otis Kyne et al*, Supreme Court Opinion, March Term, A.D. 2024; *The Assembly of God Church, Sinkor Branch v. The Intestate Estate of Joseph V. Gaye, Sr.*, Supreme Court Opinion, March Term, A.D. 2024; *Gardiner v. James*, Supreme Court Opinion, March Term, A.D. 2015.

Chapter 64 of the Civil Procedure Law titled “Arbitration” sets out a proceeding where parties to a dispute who want their matter settled by arbitration must submit a written agreement to court agreeing to submit their dispute to a board of arbitrators. This agreement effectively ousts the court from delving into the hearing of a matter except to confirm the awards made by the arbitral board with exception as set forth by section 64.10 of the Civil Procedure Statute. An arbitration agreement further sets out issues decided by the parties to be put before the board to be settled and the parties must agree as to those issues to be settled in the written agreement. An investigative survey, on the other hand, is one requested or directed by the court as a means of helping the court in settling certain technical aspects of a case which will aid the court in determining an issue and the surveyor appointed by the court is put on the stand testify to his report and subsequently sent to the jury for consideration”.

WHEREFORE, AND IN VIEW OF THE FOREGOING, the ruling of the trial court denying and dismissing the appellants’ motion for relief from judgment is hereby affirmed. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

Appeal Dismissed

When this case was called for hearing, Counsellor Tommy N. Dougba appeared for the appellants. Counsellor Arthur T. Johnson appeared for the appellee.